



CHAPTER xxvii.

An Act to empower the President Vice - Presidents A.D. 1914.
Treasurers and Governors of St. George's Hospital to
acquire lands for and to erect a new hospital to
authorise the sale and disposal of the site of St. George's
Hospital to provide for agreements with the Governors
of Westminster Hospital for amalgamation and removal
to a joint site of St. George's and Westminster Hospitals
and for other purposes. [8th July 1914.]

WHEREAS in or about the year 1733 an Institution was
formed for the relief of such poor sick and disabled persons
as should appear real objects of charity and for the purposes
of the said Institution a hospital was completed and established
on lands at or near Hyde Park Corner and has since been carried
on under the name of St. George's Hospital:

And whereas by the St. George's Hospital Incorporation Act
1834 the governing body of the said Institution were incorporated
by the name and style of "The President Vice-Presidents
Treasurers and Governors of Saint George's Hospital" (herein-
after referred to as "the Governors") and were authorised to
hold the said hospital lands and buildings at Hyde Park Corner
and certain other lands specified in the said Act subject to the
limitation that the lands so held in addition to the said site of
the hospital should not in the whole exceed the clear yearly
value of £20,000:

And whereas by the said Act of 1834 the site of the said
hospital was as to part thereof vested in fee simple in the
Governors for the purposes of the said hospital and as to another
part thereof was vested in the Governors for a certain term of
years renewable as mentioned in the said Act:

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And whereas by a deed of conveyance dated the thirty-first day of October one thousand nine hundred and six and made between the Most Noble Hugh Richard Arthur Duke of Westminster of the first part the Right Honourable Anthony Earl of Shaftesbury and Colonel Wilford Neville Lloyd of the second part the Most Noble Katharine Caroline Dowager Duchess of Westminster of the third part the Right Honourable Richard de Aquila Baron Stalbridge and the Most Noble John Douglas Sutherland Campbell Duke of Argyll of the fourth part and the Governors of the fifth part the leasehold part of the site of the said hospital was conveyed to the Governors in fee simple subject to a right of pre-emption reserved to the said Duke of Westminster in respect of the hereditaments thereby conveyed in the event of the Governors desiring to sell the same and subject to certain restrictive and other covenants contained in the said conveyance :

And whereas in view of the extensive changes which since the year 1733 have taken place in the character of the districts which the hospital was established to serve and in view of the existence within a short distance of other general hospitals affording medical and surgical relief to poor sick and infirm persons it is expedient that the Governors should be empowered to sell the site of the hospital and to remove the hospital from the present site to some other district in the county of London where a larger area of ground would be available and the sphere of usefulness of the hospital would be increased and that they should be empowered to acquire a site and lands for that purpose :

And whereas it is expedient that the Governors should be empowered to acquire lands and premises at one or more places within the area now served by the hospital and to make provision thereon for the temporary reception and treatment of patients in cases of emergency or otherwise :

And whereas there is in connexion with the hospital a medical school and it is expedient that the provisions of this Act with respect thereto should be made :

And whereas it is expedient to alter and amend the provisions of the said Act of 1834 as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act should be made :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

A.D. 1914.

PRELIMINARY.

1. This Act may be cited as the St. George's Hospital Act 1914 and this Act and the St. George's Hospital Incorporation Act 1834 may be together cited as the St. George's Hospital Acts 1834 and 1914.

Short titles.

2. In and for the purposes of this Act—

The expression "the Governors" means the President Vice-Presidents Treasurers and Governors of Saint George's Hospital;

The expression "the Act of 1834" means the St. George's Hospital Incorporation Act 1834;

The expression "the present site" means the lands at or near Hyde Park Corner in the city of Westminster now vested in the Governors as aforesaid and includes the hereditaments and premises adjoining or near the hospital and known at the passing of this Act as Nos. 3 5 7 and 9 Knightsbridge in the county of London conveyed to the Governors in fee simple by a deed of conveyance dated the seventh day of June one thousand nine hundred and four.

Interpretation.

POWERS TO GOVERNORS OF ST. GEORGE'S HOSPITAL.

3.—(1) It shall be lawful for the Governors by agreement to purchase acquire take on lease or in exchange or accept and to hold any lands tenements and hereditaments in the county of London which they may think suitable or convenient (a) for the erection of a hospital and of buildings for use in connexion therewith and (b) for the provision of premises at any place or places within the area now served by the hospital for the temporary reception and treatment of patients in cases of emergency or otherwise.

Power to Governors to acquire lands.

(2) The consideration upon any such purchase or acquisition may be paid either by a sum in gross or by annual sums terminable or otherwise and charged on the lands purchased or partly in the one way and partly in the other or in any other

A.D. 1914. — manner and on and subject to such terms and conditions as may be agreed between the Governors and the owners of any such lands and upon accepting any lease the Governors may pay any such fine or premium for the granting thereof as may be agreed between them and the lessors and upon any such exchange the Governors may pay or receive any moneys which may be agreed on for equality of exchange.

Limitation
of value of
lands held
under Act of
1834 not to
apply.

4. The value of any lands acquired by the Governors under the powers of this Act shall not be taken into account in computing the value of the lands which the Governors are by the Act of 1834 authorised to hold and retain for the purposes of the hospital.

Power to
erect a new
hospital.

5.—(1) It shall be lawful for the Governors upon any lands purchased acquired taken on lease or in exchange or accepted by them to erect and maintain a hospital and such buildings and erections works and conveniences for use in connexion therewith (including buildings works and conveniences for the temporary reception and treatment of patients at any such place or places as aforesaid) as they may think fit and to carry on manage and maintain the same subject to the provisions of this Act and of the Act of 1834 as amended by this Act so far as such provisions of the Act of 1834 are applicable to such hospital.

(2) It shall be lawful for the Governors upon any lands purchased acquired taken on lease or in exchange or accepted by them for such purpose to provide use and maintain any buildings works and conveniences for the temporary reception and treatment of patients.

Power to sell
present site.

6. Notwithstanding anything contained in the Act of 1834 the Governors may subject to the provisions of this Act sell and dispose of and may enter into and carry into effect any agreement for the sale and disposal of the present site or any part thereof on such terms of payment whether by a sum in gross or by annual sums terminable or otherwise and charged on such site or otherwise or partly in the one way and partly in the other or in any other manner and on and subject to such terms and conditions as may be agreed between the Governors and any intending purchaser.

Power to
permit pro-
portion of

7. The Governors may permit any part not exceeding in the whole one third of the purchase price payable for the

present site or any part thereof if sold by them to remain on mortgage of the property sold or any part thereof as may be agreed upon between the Governors and any intending purchaser. A.D. 1914.
price to
remain on
mortgage.

8. It shall be lawful for the Governors on the one hand and any person entitled to any estate or interest in the present site or any right of pre-emption or other right in respect thereof on the other hand to enter into and carry into effect any agreement for the sale and surrender and release to the Governors of any such estate interest or right on such terms and conditions as may be agreed and whether for the purposes of or in connexion with a sale of the present site or otherwise. Release and
surrender of
outstanding
interests.

9. Notwithstanding anything contained in the Act of 1834 the Governors may subject to the provisions of this Act raise any sums which they may from time to time require for the purposes of this Act by mortgage of the present site or any part thereof on such terms and conditions as may be agreed between the Governors and any intending mortgagee Any such mortgage may be either by a conveyance of the fee simple of or by the creation of a term of years in the present site or the portion thereof to be mortgaged. Power to
mortgage
present site.

10. Notwithstanding anything contained in the Act of 1834 the Governors may (subject to the provisions of this Act) when and as they shall think fit— Power to
lease present
site.

- (1) Demise and lease the present site or any part thereof on building leases either altogether or in parcels to any person or persons who shall erect and build or covenant and agree to erect and build thereon or on any part thereof houses erections or buildings of such size or class of building and upon such plans and elevations and of such heights and with such storeys as the Governors shall think proper for such term or number of years as they may think fit so as there be reserved in every such demise or lease such peppercorn or other yearly rent to be incident to the immediate reversion of the premises therein comprised as the Governors shall think reasonable and so that in every such demise or lease there be contained a covenant for the payment of the rent thereby to be reserved and such other covenants on the part of the tenant or lessee to be therein named as the Governors shall

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think fit and also a clause in the nature of a condition of re-entry on non-payment of the rent thereby to be reserved or on non-observance or non-performance of the covenants therein to be contained and on the part of the tenant or lessee to be observed and performed and every such tenant or lessee shall give such good and sufficient security for the erecting finishing and completing of every such house erection and building which he shall covenant or agree to erect within the time in which he shall have contracted to finish the same as shall be agreed by him with the Governors;

- (2) Let at rack rent either from year to year or for a less period or for such term or number of years as they may think fit or exchange or otherwise dispose of the present site or any part thereof; and
- (3) Accept and take any fine or premium for the granting of any lease and enter into any agreement for the granting of any lease of the present site or any part thereof and may in any such lease or agreement for a lease give to the lessee or intended lessee an option or right to purchase the fee simple in reversion in the premises leased or agreed to be leased together with all houses erections or buildings thereon at the time of the exercise of such option at such time and on such terms and conditions as they may think fit and on granting leases in pursuance of such agreements may alter the amount of the rents agreed to be reserved in such leases and may apportion the same and grant separate leases of any part of the hereditaments by any such agreement agreed to be leased as the Governors shall think fit and may also alter or rescind any such agreement as aforesaid and may accept any surrender of any lease in all respects as the Governors shall think fit and upon the grant of any such lease or the making of any such agreement for a lease any part of the present site may be appropriated for and left as yards courts roads or paths as the Governors shall think fit.

As to sale of
rents and
reversions.

11. Notwithstanding anything contained in the Act of 1834 the Governors may (subject to the provisions of this

Act) sell and dispose of and mortgage or charge or assign the rents to be reserved by any lease or demise or agreed to be reserved by any agreement for a lease of the present site or any part thereof made under the authority of this Act and also the fee simple in reversion in the same either altogether or in parcels by public auction or by private contract for such price or prices or sum or sums of money as the Governors shall think reasonable and subject to such stipulations and provisions for the enjoyment thereof and as to the nature of the buildings which are to be at any time or times erected and built thereon and also subject to such stipulations as to the title to the hereditaments to be dealt with as the Governors shall think fit.

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12.—(1) Subject to the provisions herein-after contained every building hereafter erected on the present site and every alteration of or addition to the existing or any future buildings thereon so far as the same when completed shall be visible from Buckingham Palace or the grounds thereof or the Green Park or Hyde Park or any part thereof respectively shall be effected and carried out in accordance in all respects with elevations and specifications first submitted to and approved by the Commissioners of Works.

Protection of
amenities
of Bucking-
ham Palace
the Green
Park and
Hyde Park.

(2) If the said Commissioners shall not approve any elevations and specifications submitted to them as aforesaid within one month after such submission such elevations and specifications shall be referred to the President of the Royal Institute of British Architects or an architect to be nominated by him The referee on any such reference shall hear the objections of the said Commissioners to the submitted elevations and specifications and take into consideration any representations with respect to such elevations and specifications and to such objections which may be made by the person submitting the said elevations and specifications and shall by his award approve the said elevations and specifications (with or without modification) or disapprove the same and the approval of any such elevations or specifications by such referee shall be deemed to be the approval of the said Commissioners The costs of the said Commissioners of and incidental to any such reference and the charges of the referee shall be paid by the person submitting the said elevations and specifications.

(3) There shall not be erected placed or maintained upon any building or hoarding hereafter erected on any part of the present site any external sign lettering or advertisement which

A.D. 1914. shall be so visible as aforesaid and which in the opinion of the said Commissioners shall be detrimental to the amenities of Buckingham Palace or the grounds thereof or either of the said parks and in the event of any sale of the present site or any part thereof the provisions of this subsection shall as from the completion of such sale extend and apply to the existing building or to so much thereof as shall be standing on the part of the site sold as the case may be and to any hoarding which may be erected on the site.

(4) No building now or hereafter erected or being on the present site or any part thereof shall be of such nature or used for any such purpose as in the opinion of the Commissioners of Works shall be detrimental to the amenities of Buckingham Palace or the grounds thereof or either of the said parks. Provided that this subsection shall not apply to any building used or intended to be used as a hospital private dwelling-house flats residential chambers hotel restaurant club-house shops or offices.

(5) Every sale lease exchange or other disposition under the powers of this Act shall unless the Commissioners of Works otherwise agree be made subject to the provisions and restrictions contained in subsections (1) (2) (3) and (4) of this section and the deed or other instrument effectuating every such sale lease exchange or other disposition shall contain such covenants provisions and conditions as may be necessary to secure the performance and observance of the provisions and restrictions to which the same shall be so made subject.

Application
of London
Building
Acts.

13. Nothing in this Act shall exempt any buildings or structures or additions to or alterations of buildings structures or works erected constructed or made upon any lands purchased acquired leased exchanged sold let or otherwise dealt with under or in pursuance of the powers of this Act from the provisions of the London Building Acts 1894 to 1909 and any Act amending the same and any byelaws and regulations in force thereunder.

For protec-
tion of Duke
of West-
minster.

14. For the protection of the Most Noble Hugh Richard Arthur Duke of Westminster or his successor or successors for the time being entitled to the benefit of the right of pre-emption reserved by and to the benefit of the covenants on the part of the Governors contained in the recited deed of conveyance dated the thirty-first day of October one thousand nine hundred and six the following provision shall have effect unless otherwise agreed in writing between the said Duke of Westminster or such successor or successors as the case may be and the Governors.

Any sale mortgage or lease of or other dealing by the Governors with any part of the present site which was at the passing of this Act subject to the said right of pre-emption reserved by or to the covenants contained in the recited deed of conveyance dated the thirty-first day of October one thousand nine hundred and six shall be made subject to such right or such covenants or both as the case may require.

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15. The Governors may in connexion with the hospital when removed provide and maintain all necessary and proper accommodation for the continuance and carrying on of the St. George's Hospital Medical School and any gifts endowments or other property specifically attaching or belonging to or any prize fund allocated to the existing medical school shall be held and applied and shall attach and belong to the school to be provided at or in connexion with the new hospital.

Provision as to Medical School.

16. The hospital if and when removed to any site acquired under the powers of this Act shall exist for the purposes of affording medical and surgical relief to poor sick and infirm persons and shall be in substitution for the St. George's Hospital as existing at the passing of this Act and subject to the provisions of this Act all deeds of gift grants devises and bequests whether then operative or thereafter to become operative in favour or for the benefit of the existing hospital or any object or purpose in connexion therewith and all endowments or other sums of money held in trust for the existing hospital or for any such object or purpose shall be operative and shall be held and applied for and in respect of the like objects or purposes in connexion with the hospital when removed and the Governors or other the trustee or trustees of any such gifts grants endowments or other sums of money or of any property whatsoever of or belonging to the existing Hospital shall hold and apply the same accordingly.

Property &c. of existing hospital to be applied to new hospital.

17. The Governors may provide and maintain in connexion with the hospital when removed as aforesaid a ward or wards or other premises for the reception and treatment of patients able and willing to pay for the same.

Wards for paying patients.

AGREEMENTS WITH GOVERNORS OF WESTMINSTER HOSPITAL FOR AMALGAMATION.

18.—(1) The Governors and the governing body of the Westminster Hospital incorporated by the Westminster Hospital Incorporation Act 1836 may enter into and carry into effect

As to amalgamation with Westminster Hospital.

A.D. 1914. — agreements and arrangements for the amalgamation and carrying on as one institution of the existing institutions carried on by them respectively and by any such agreement may arrange for the removal of one of the two hospitals to a new site or for the removal of both the said hospitals to a new site sufficient for the accommodation of both and such agreement may contain all such provisions as may be requisite and proper for the purposes aforesaid.

(2) Unless and until an agreement for amalgamation is entered into between the Governors and the governing body of the Westminster Hospital nothing in this section shall be construed as affecting in any way the right of the Governors or of the said governing body to enter into and carry into effect any such agreements or arrangements as aforesaid with any other institution body or authority which such Governors or governing body could have entered into and carried into effect if this section had not been enacted.

Compensation to officers and servants for loss of office or employment.

19. If under or in pursuance of any such agreement as aforesaid any officer or servant in the permanent employ of the Governors shall suffer any direct pecuniary loss by abolition of his office or termination of his employment or by diminution in salary wages fees or emoluments such officer or servant shall be entitled to compensation from the Governors regard being had to the conditions on which his appointment was made to the nature of his office and employment the duration of his service and his age at the time of such abolition or diminution and in the event of any difference arising as to the amount of any such compensation such difference shall be determined in manner provided by the Arbitration Act 1889 and this section shall for the purposes of that Act be deemed to be a submission to a single arbitrator.

MISCELLANEOUS.

Costs of Act.

20. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act shall be paid by the Governors out of their general funds.

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